

RESOLUTION # 120320-13

A RESOLUTION APPROVING A PROPOSITION TO IMPOSE THE 1% SPECIFIC PURPOSE SALES AND USE TAX IN LARAMIE COUNTY, STATE OF WYOMING, FOR THE EXCLUSIVE PURPOSE OF FUNDING SPECIFIC PURPOSES FOR SPECIFIC AMOUNTS; THE PROPOSITIONS TO BE VOTED ON AT THE PRIMARY ELECTION TO BE HELD ON TUESDAY, AUGUST 21, 2012.

WHEREAS, pursuant to Wyo. Stat. §§ 39-15-203(a)(iii), 39-15-204(a)(iii), 39-16-203(a)(ii), 39-16-204(a)(ii), and 39-16-202(e) counties may impose an excise tax not to exceed two percent (2%) upon retail sales of tangible personal property, admissions and services made, and upon storage, use and consumption of tangible personal property, within the county, for specific purposes and in specific amounts as authorized by the qualified electors of the county (hereinafter the "Tax"); and

WHEREAS, the Board of County Commissioners (the "Commissioners") of Laramie County, State of Wyoming, (the "County"), in response to the needs of the County and requests received from the City of Cheyenne, the Town of Pine Bluffs, the Town of Burns, and the Town of Albin (hereinafter, being sometimes individually referred to as "Sponsoring Entity" and collectively referred to as the "Sponsoring Entities"), has determined to make a source of funding available through imposition of an excise tax not to exceed one percent (1%) in the following specific amounts for the following specific purposes (the "Projects"):

1. \$33,000,000 to the City of Cheyenne to construct an all-purpose Recreation Center.
2. \$25,000,000 to the City of Cheyenne for a Public Safety building that will house the Cheyenne Police Department,

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Cheyenne Victim Services, Cheyenne Fire & Rescue Administration, Laramie County 911 Communications Center and the Laramie County Emergency Operations Center.

3. \$21,851,407 to Laramie County to construct a year round multi-purpose event center at Laramie County Fairgrounds at the Laramie County Archer Complex.
4. \$16,000,000 to the City of Cheyenne for renovation and expansion of the Cheyenne Botanic Gardens, including safety improvements to access and adjoining roads.
5. \$7,000,000 to Laramie County for the purchase of upgraded radio and telecommunications equipment for the Emergency 911 Combined Communications Center.
6. \$685,000 to Laramie County for the purchase of in-car digital video recorders, radars and updated radios for sheriff's patrol cars, renovation of the former Public Works site for secure property and evidence storage and future state-mandated e-citation system.
7. \$1,000,000 to the City of Cheyenne for the purchase of replacement portable police radios and an upgrade to the radio system to be compatible with the Emergency 911 Combined Communications system.
8. \$300,000 to the Town of Pine Bluffs for completion of the water main loop.
9. \$210,036 to the Town of Burns for Fourth Street sewer line redirection.
10. \$257,000 to the Town of Burns for installation of utility casings under the Union Pacific Railroad tracks.
11. \$170,000 to the Eastern Laramie County Solid Waste District to purchase a loader.
12. \$432,000 to the Town of Albin to purchase and install a booster pump to increase water pressure for residents, businesses, and fire district.
13. \$90,000 to the Town of Pine Bluffs to repair sewer

lagoon valves.

14. \$4,800,000 to the City of Cheyenne to provide flood control and water quality improvements for the Capitol Basin.
15. \$1,493,690 to the Town of Burns for Burns-Plex repairs and remodeling.
16. \$900,000 to the Town of Pine Bluffs to pave Butler Avenue
17. \$800,000 to the Town of Pine Bluffs to pave Black Boulevard.
18. \$500,000 to the Town of Albin for replacement of deteriorating sewer lines.
19. \$900,000 to the Town of Pine Bluffs for a new water tank.
20. \$636,993 to the Town of Burns for design and construction of Liberty Park.
21. \$700,000 to the City of Cheyenne for development of the 17th Street corridor to include design and construction of improvements and enhancements, lighting, maintenance, operations.
22. \$1,342,280 to Laramie County Fire District #10 for the construction of a new building to be used as an additional fire station and a sanctuary for travelers caught on I-80 during inclement weather.
23. \$187,000 to Laramie County Fire District #2 to complete the remodel of Station #1 located on Yellowstone Road.
24. \$170,000 to Laramie County Fire District #3 to complete the construction of a fire station, water well, septic system, and back-up generator at Whitecrest on US Highway 85.
25. \$375,860 to Laramie County Fire District #4 to construct a new fire station, water well and septic

system at County Road 207 and County Road 140.

26. \$305,000 to Laramie County Fire District #8 to construct a new garage, remodel of existing facility and install an Environmental Protection Agency compliant fueling system.
27. \$3,000,000 to the City of Cheyenne for the purchase of equipment needed for landfill operations and expansion of the Felix Pino Transfer Station.
28. \$4,800,000 to the Cheyenne Airport Board in grant matching funds to aid in the construction of a new terminal for the Cheyenne Regional Airport.
29. \$400,000 to the Town of Pine Bluffs to rehabilitate Reher Park
30. \$150,000 to the Town of Pine Bluffs to correct drainage and repair the foundation at the Archeological site.
31. \$148,423 to the Town of Burns for maintenance building renovation and expansion.
32. \$189,000 to the Town of Albin to purchase a backhoe, skid-steer, and small tractor with attachments.
33. \$176,400 to the Town of Burns for elevation mapping for drainage and master plan development.
34. \$77,458 to the Town of Burns to purchase a skid-steer with accessories.
35. \$5,000,000 to the City of Cheyenne for renovations to the Municipal Pool in Lions Park.
36. \$2,000,000 to the City of Cheyenne for planning and engineering of a new overpass crossing the Union Pacific Railroad tracks at Christensen Road.
37. \$1,013,470 to Laramie County for the purchase and installation of outdoor warning sirens and related computer system upgrades.

38. \$800,000 to the Town of Pine Bluffs for the retirement of debt.
39. \$555,000 to the Town of Albin to purchase land to construct a mobile home and recreational vehicle park.
40. \$350,000 to the Town of Pine Bluffs to replace electrical meters.
41. \$310,000 to the Town of Pine Bluffs to rehabilitate the north lift station.
42. \$324,000 to the Town of Albin to construct an addition to the Community Center.

WHEREAS, the Commissioners have determined that a 1% Specific Purpose Sales and Use Tax should be imposed within the County pursuant to Wyo. Stat. §§ 39-15-203(a)(iii), 39-15-204(a)(iii), 39-16-203(a)(ii), 39-16-204(a)(ii), and 39-16-202(e) in order to fund the planning, construction, furnishing, equipping, acquisition and improvement of land and, to the extent necessary and allowed by law, the pledge to or payment of operation and maintenance, debt service and/or lease service payments thereon, and, if necessary and/or available, to be used to leverage or match federal/and or state grant funds, for the above-referenced Projects; and

WHEREAS, the Commissioners have determined it is necessary to submit the proposition for imposition of the Tax to the qualified registered electors of the County; and

WHEREAS, pursuant to the provisions of Wyo. Stat. §§ 39-15-203(a)(iii)(A) and 39-16-203(a)(ii)(A), before any proposition to impose the Tax shall be placed before the electors of the County, the Commissioners and the governing bodies of at least two-thirds (2/3) of the incorporated municipalities within the County shall adopt a resolution approving the propositions, setting forth a procedure for qualification of a ballot question for placement on the ballot, and specifying how excess funds shall be expended; and

WHEREAS As to Proposition # 1, the Recreation Center for the City of Cheyenne: The Governing Body of the City of Cheyenne by resolution has declared that in the event that this project is approved by the voters of Laramie County, no tax collected will be applied to this project until any amounts approved for other projects on this ballot have been collected in full. The governing body of the City of Cheyenne by execution of the resolution approving this Specific Purpose Excise Tax, has declared that waiver of the right to immediate distribution of funds from the County Treasurer pursuant to W.S. 39-15-211 (b)(ii) in regard to this proposition is of necessary and definable benefit to the City of Cheyenne as defined in *Mariano & Associates, P.C. v. Board of County Com'rs of Sublette County* 737 P.2d 323 (Wyo.,1987);

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF COUNTY COMMISSIONERS OF LARAMIE COUNTY, STATE OF WYOMING THAT:

Section 1. At the election to be held in Laramie County, State of Wyoming, on August 21, 2012 between the hours of 7:00 a.m. and 7:00 p.m., there will be submitted to the qualified registered electors of the County the proposition of imposing a 1% Specific Purpose Sales and Use tax for the exclusive purpose of funding the planning, construction, furnishing, equipping, acquisition and improvement of land and, to the extent necessary and allowed by law, the pledge to or payment of operation and maintenance, debt service and/or lease payments thereon, for the above-referenced Projects, and, if necessary and/or available, to be used to leverage or match federal and/or state grant funds as more particularly set forth in the ballot question at the election and in the Laramie County Primary Election Proclamation, to be published by the Laramie County Clerk in accordance with law.

Section 2. The election on the proposition shall be held at those Election Districts, Precincts and Polling Places as more particularly set forth in the Primary Election Proclamation, to be published by the Laramie

County Clerk in accordance with law.

Section 3. The votes, including absentee votes, shall be registered on official ballots. The ballots shall set forth the following propositions:

Eight (8) propositions are proposed for funding with a 1% Specific Purpose Sales and Use Tax. Each proposition stands alone. You may vote for or against each proposition. Each proposition must receive a majority of the votes cast on it to be approved.

Shall Laramie County be authorized to impose an additional one percent (1%) Specific Purpose Sales and Use Tax, within Laramie County, to be used for funding the planning, engineering, construction, remodeling, furnishing, equipping, supplying (including maintenance equipment), acquisition and improvement of land (if necessary) and, to the extent necessary and allowed by law, a pledge or payment of operation and maintenance, debt service, lease payments thereon and, if necessary and/or available, to be used to leverage or match federal and/or state grant funds, in the specified amounts and for the specified purposes provided below:

PROPOSITION 1

To collect a total of \$33,000,000 and interest earned thereon to the City of Cheyenne to construct an all-purpose recreation center; no tax collected will be applied to this project until any amounts approved for other projects on this ballot have been collected in full.

FOR THE TAX

AGAINST THE TAX

PROPOSITION 2

To collect a total of \$25,000,000 and interest earned thereon to the City of Cheyenne to construct a public safety building to house the Cheyenne Police Department, Cheyenne Victim Services, Cheyenne Fire and Rescue Administration, Laramie County 911 Combined Communications Center, and the Laramie County Emergency Operations Center.

FOR THE TAX

AGAINST THE TAX

PROPOSITION 3

To collect a total of \$21,851,407 and interest earned thereon, to Laramie County to construct a year round multi-purpose event center at the Laramie County Fairgrounds at the Laramie County Archer Complex.

FOR THE TAX

AGAINST THE TAX

PROPOSITION 4

To collect a total of \$16,000,000 and interest earned thereon to the City of Cheyenne for renovation and expansion of the Cheyenne Botanic Gardens \$2,000,000 of which shall be used for safety improvements to access and adjoining roads.

FOR THE TAX

AGAINST THE TAX

PROPOSITION 5

To collect a total of \$10,144,036 and interest earned thereon for the following projects:

- A. \$7,000,000 to Laramie County for the purchase of upgraded radio and telecommunications equipment for the Emergency 911 Combined Communications Center.
- B. \$685,000 to Laramie County for the purchase of in-car digital video recorders, radars and updated radios for sheriff's patrol cars, renovation of the former Public Works site for secure property and evidence storage and future state-mandated e-citation system.
- C. \$1,000,000 to the City of Cheyenne for the purchase of replacement portable police radios and an upgrade to the radio system to be compatible with the Emergency 911 Combined Communications system.
- D. \$300,000 to the Town of Pine Bluffs for completion of the water main loop.
- E. \$210,036 to the Town of Burns for Fourth Street sewer line redirection.
- F. \$257,000 to the Town of Burns for installation of utility casings under the Union Pacific Railroad tracks.
- G. \$170,000 to the Eastern Laramie County Solid Waste District to purchase a loader.
- H. \$432,000 to the Town of Albin to purchase and install a booster pump to increase water pressure for residents, businesses, and fire district.
- I. \$90,000 to the Town of Pine Bluffs to repair sewer lagoon valves.

FOR THE TAX

AGAINST THE TAX

PROPOSITION 6

To collect a total of \$10,730,683 and interest earned thereon for the following projects:

- A. \$4,800,000 to the City of Cheyenne to provide flood control and water quality improvements for

the Capitol Basin.

- B. \$1,493,690 to the Town of Burns for Burns-Plex repairs and remodeling.
- C. \$900,000 to the Town of Pine Bluffs to pave Butler Avenue
- D. \$800,000 to the Town of Pine Bluffs to pave Black Boulevard.
- E. \$500,000 to the Town of Albin for replacement of deteriorating sewer lines.
- F. \$900,000 to the Town of Pine Bluffs for a new water tank.
- G. \$636,993 to the Town of Burns for design and construction of Liberty Park.
- H. \$700,000 to the City of Cheyenne for development of the 17th Street corridor including design and construction of improvements and enhancements, lighting, maintenance, operations.

FOR THE TAX

AGAINST THE TAX

PROPOSITION 7

To collect a total of \$11,067,563 and interest earned thereon for the following projects:

- A. \$1,342,280 to Laramie County Fire District #10 for the construction of a new building to be used as an additional fire station and a sanctuary for travelers caught on I-80 during inclement weather.
- B. \$187,000 to Laramie County Fire District #2 to complete the remodel of Station #1 located on Yellowstone Road.
- C. \$170,000 to Laramie County Fire District #3 to complete the construction of a fire station, water well, septic system, and back-up generator at Whitecrest on US Highway 85.
- D. \$375,860 to Laramie County Fire District #4 to construct a new fire station, water well and septic system at County Road 207 and County Road 140.
- E. \$305,000 to Laramie County Fire District #8 to construct a new garage, remodel an existing facility

and install an Environmental Protection Agency compliant fueling system.

- F. \$3,000,000 to the City of Cheyenne for the purchase of equipment needed for landfill operations and expansion of the Felix Pino Transfer Station.
- G. \$4,800,000 to the Cheyenne Airport Board in grant matching funds to aid in the construction of a new terminal for the Cheyenne Regional Airport.
- H. \$400,000 to the Town of Pine Bluffs to rehabilitate Reher Park
- I. \$150,000 to the Town of Pine Bluffs to correct drainage and repair the foundation at the Archeological site.
- J. \$148,423 to the Town of Burns for maintenance building renovation and expansion.
- K. \$189,000 to the Town of Albin to purchase a backhoe, skid-steer, and small tractor with attachments.

FOR THE TAX

AGAINST THE TAX

PROPOSITION 8

To collect a total of \$10,606,328 and interest earned thereon for the following projects:

- A. \$176,400 to the Town of Burns for elevation mapping for drainage and master plan development.
- B. \$77,458 to the Town of Burns to purchase a skid-steer with accessories.
- C. \$5,000,000 to the City of Cheyenne for renovations to the Municipal Pool in Lions Park.
- D. \$2,000,000 to the City of Cheyenne for planning and engineering of a new overpass crossing the Union Pacific Railroad tracks at Christensen Road.
- E. \$1,013,470 to Laramie County for the purchase and installation of outdoor warning sirens and related computer system upgrades.
- F. \$800,000 to the Town of Pine Bluffs for the retirement of debt from water projects funded with loans from agencies of the State of Wyoming.
- G. \$555,000 to the Town of Albin to purchase land to

construct a mobile home and recreational vehicle park.

- H. \$350,000 to the Town of Pine Bluffs to replace electrical meters.
- I. \$310,000 to the Town of Pine Bluffs to rehabilitate the north lift station.
- J. \$324,000 to the Town of Albin to construct an addition to the Community Center.

FOR THE TAX

AGAINST THE TAX

Section 4. The County Clerk shall cause the Laramie County Primary Election Proclamation to be published in accordance with law.

Section 5. The election on the propositions shall be held, conducted and the results canvassed as provided by the Wyoming Election Code of 1973, more particularly the Political Subdivision Bond Election Law (Wyo. Stat. §§22-21-101 to 22-21-112, inclusive).

Section 6. In the event that any or all of the eight (8) propositions shall be approved by the qualified electors of Laramie County, the Tax shall commence on the first day of the calendar quarter after sixty (60) days notice has been given to the vendors in accordance with Wyo. Stat. §§ 39-15-203(a)(iii)(E) and 39-16-203(a)(iii)(E) or after one hundred and twenty (120) days notice has been given to the vendors selling from a printed catalog in accordance with Wyo. Stat. §§ 39-15-203(a)(iii)(E) and 39-16-203(a)(iii)(E). Upon receipt of proceeds of the Tax from the Wyoming Department of Revenue, the Laramie County Treasurer shall distribute said proceeds, monthly, to each entity in the same proportion as its cost is to the total cost of all purposes approved in accordance with Wyo. Stat. §§ 39-15-203(a)(iii) and 39-16-203(a)(ii) on the August 21, 2012 election ballot, with the exception that no proceeds shall be distributed to the City of Cheyenne for the construction of the recreation center under Proposition #1

until all other approved projects have been fully funded. The governing body of the City of Cheyenne by execution of the resolution approving the submission of the Specific Purpose Sales and Use Excise Tax propositions to the voters, has declared that that waiver of the right to immediate distribution of funds from the County Treasurer pursuant to W.S. 39-15-211(b)(ii) in regard to this proposition is of necessary and definable benefit to the citizens of the City of Cheyenne as defined in *Mariano & Associates, P.C., v. Board of County Com'rs of Sublette County*, 737 P.2d 323 (Wyo., 1987).

Upon distribution of total approved amount in Tax funds to the Entities (or such lesser amount if the Entities have agreed to terminate the Tax pursuant to Wyo. Stat §§ 39-15-203(a)(iii)(G) and 39-16-203(a)(ii)(G)), excess Tax funds shall be retained by the Laramie County Treasurer for one (1) year for refund of overpayments. After one (1) year, the excess Tax funds (less any refunds), plus any interest earned thereon, shall be transferred to the sponsoring entities in the same proportion as its cost is to the total cost of all purposes approved in accordance with Wyo. Stat §§ 39-15-203(a)(iii) and 39-16-203(a)(ii) on the August 21, 2012 Primary election ballot. The excess Tax funds, and interest earned thereon, shall be used for operation and maintenance of the Projects or for any other legal purpose with respect thereto.

Section 7. Before the proposition may be placed before the qualified electors of Laramie County, the Commissioners and the governing bodies of at least two-thirds ($\frac{2}{3}$) of the incorporated municipalities within the County must adopt resolutions as required by Wyo. Stat §§ 39-15-203(a)(iii)(A) and 39-16-203(a)(ii)(A).

Section 8. The passage of this resolution shall constitute written notification to the County Clerk, in accordance with Wyo. Stat § 22-21-103, specifying the date of the election and the proposition, and shall further constitute approval as required by Wyo. Stat §§ 39-15-203(a)(iii)(A) and 39-16-203(a)(ii)(A).

Section 9. Should any part or provision of this resolution ever be judicially determined to be invalid or

unenforceable, such determination shall not affect the remaining parts and provisions hereof, the intention being that each part or provision of this resolution is severable.

ADOPTED AND APPROVED as of the 20th day of March, 2012.

LARAMIE COUNTY, STATE OF WYOMING



(SEAL)

Gay Woodhouse

Gay Woodhouse, Chairman
Board of Laramie County Commissioners

ATTEST:

Debra K. Lathrop

Debra K. Lathrop
Laramie County Clerk

Reviewed and approved as to form:

Mark T. Voss
Mark T. Voss
Laramie County Attorney

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